OGSM : FCC-620-2025/009-00
COUNTRY: NIGERIA

COOPERATIVE AGREEMENT BETWEEN THE GOVERNMENT OF THE UNITED STATES OF AMERICA AND PARTNERS OF THE AMERICAS FOR THE PROVISION OF AGRICULTURAL COMMODITIES THROUGH THE FOOD FOR PROGRESS ACT

Preamble

The Government of the United States of America, acting through the Commodity Credit Corporation (hereinafter referred to as CCC), an agency within the United States Department of Agriculture (hereinafter referred to as USDA), and Partners of the Americas (hereinafter referred to as the Recipient);

In an effort to use the food resources of the United States in support of countries that have made commitments to introduce or expand free enterprise elements in their agricultural economies through changes in commodity prices, marketing, input availability, distribution, and private sector involvement;

Desiring to set forth the understandings that will govern the provision of agricultural commodities to the Recipient for use in Nigeria under the Food for Progress Program, which is authorized by the Food for Progress Act of 1985, as amended;

Agree as follows:

PART I TERMS OF DONATION

A. CCC agrees to donate to the Recipient agricultural commodities with a total cost not to exceed $20,610,000.00 for 2025 (hereinafter referred to as the "donated commodities") for assistance in Nigeria and, to the extent specifically included in Part II, Items I and III, pay ocean transportation and other costs associated with providing the donated commodities. This donation is not for research and development.

B. The Recipient agrees to use the donated commodities, and any amount specified in Part II, Item III, Paragraph A, only in accordance with this agreement and the approved Plan of Operation, Attachment A, which is attached hereto and made a part of this agreement.

C. The type, maximum quantity, packaging, and estimated arrival at U.S. port(s) of each donated commodity will be set forth in the monetization plan, as required by Part III, Item I, Paragraph C, and approved by CCC. The donated commodities will be selected by the Recipient, with approval by CCC, from the commodities listed in the Eligible Commodities and Commodity Specifications, Attachment B, which is attached hereto and made a part of this agreement. Each type of commodity included in the donated commodities will comply with the specifications for such commodity in Attachment B. CCC may, at its option, substitute packaging of a different size or type or both from the packaging specified in the monetization plan. CCC may, but is not required to, provide extra bags for donated commodities that are packaged if the Recipient requests them at the time that the Recipient submits its order for delivery of such donated commodities.

D. CCC will endeavor to provide to the Recipient the maximum quantity of each of the types of donated commodities specified in the monetization plan. CCC may, however, provide a quantity of a

donated commodity that is less than the maximum quantity specified in the monetization plan, to the extent that in CCC's estimation the total cost of the donated commodities would exceed $20,610,000.00 for 2025 or the total cost of the donated commodities, transportation, and any assistance provided by CCC under this agreement would otherwise exceed $26,360,000.00. For CCC's financial management purposes, costs associated with this agreement will be obligated against budget fiscal year 2025 funds.

E. The Recipient will provide a cost sharing or matching contribution of $347,715.54, resulting in a total Federal award amount of $26,707,715.54. If the Recipient fails to comply with this requirement, CCC may take action in accordance with 7 CFR section 1499.15 and 2 CFR section 200.339. This includes, but is not limited to, withholding further Federal funds for this or future projects.

F. This agreement is subject to the availability, during each fiscal year to which this agreement applies, of the necessary commodities and funds.

G. This agreement is subject to the terms and conditions set forth in 7 CFR part 1499 and the Office of Management and Budget guidance at 2 CFR part 200, as supplemented by 2 CFR part 400 and 7 CFR part 1499. In addition, the following apply to the Food for Progress Program: (1) other regulations that are generally applicable to grants and cooperative agreements of USDA, including but not limited to 2 CFR parts 25, 170, 175, 180, 182, 183, 415, 417, 418, 421, and 422, except as otherwise provided in 7 CFR part 1499; and (2) the provisions of the CCC Charter Act (15 U.S.C. 714 *et seq*.) and any other statutory or regulatory provisions that are generally applicable to CCC.

H. The Assistance Listing Number and program title for the Food for Progress Program is 10.606, Food for Progress.

I. The Recipient will, in accordance with a schedule provided to it by CCC, submit to CCC, subject to modification and approval by CCC, The Budget Narrative, Attachment C-2 and the Detailed Budget, Attachment C-3, Performance Indicators and a Project-level Results Framework. After the parties have agreed to the terms of the Performance Indicators and the Project-level Results Framework, the parties will amend this agreement to include such documents as attachments. The parties will make all reasonable efforts to sign this amendment no later than November 30, 2025. CCC may suspend the provision of donated commodities, funding, or both under this agreement if it determines that the Recipient has not made a reasonable effort to submit Performance Indicators and a Project-level Results Framework in accordance with the schedule for submission provided to it by CCC.

PART II

TRANSPORTATION, DAMAGE OR LOSS, AND PAYMENT OF COSTS

Item I – Transportation of Donated Commodities

A. The Recipient will arrange for the transportation of the donated commodities from the place at which the ocean carrier receives the donated commodities from the commodity supplier to the designated discharge port(s), in accordance with 7 CFR section 1499.7(b)(2).

B. The Recipient agrees to arrange for ocean transportation in accordance with 7 CFR section 1499.7(a) and 48 CFR part 47, subpart 47.5 – Ocean Transportation by U.S.-Flag Vessels.

C. The Recipient will submit any proposed invitation for transportation bids to CCC and obtain the approval of CCC prior to issuing such invitation. The Recipient will submit any bid that it proposes to accept to CCC and obtain the approval of CCC prior to entering into a contract for transportation based upon such bid. The Recipient will provide to CCC a copy of each contract for transportation. CCC will

 pay the costs, consistent with the terms of the applicable contract, of transporting donated commodities from the place at which the ocean carrier receives them from the commodity supplier to the designated discharge port(s) by reimbursing the ocean carrier for such costs.

D. The Recipient will include payment instructions in each contract for transportation. The Recipient will require that each request for payment under a contract for transportation of donated commodities be sent to the automated payment system of the Foreign Agricultural Service (FAS) via the Web-Based Supply Chain Management (WBSCM) system. The Recipient will also ensure that the documents specified in 7 CFR section 1499.6(a)(1) - (6) are maintained on file and made available to CCC.

E. If the Recipient uses the services of a freight forwarder, the Recipient will provide to the Senior Director, International Food Assistance Division (IFAD), FAS, the name of and contact information for the freight forwarder and the certification required by 7 CFR section 1499.7(e) prior to submitting its initial order for the delivery of donated commodities under this agreement.

Item II – Damage to or Loss of Donated Commodities

A. CCC will transfer the title to, and the risk of loss of, the donated commodities to the Recipient at the time and place at which the ocean carrier receives the donated commodities from the commodity supplier.

B. The Recipient will report damage to or loss of donated commodities to which it has title as follows:

(1) If the amount of the damage or loss is estimated to exceed $20,000, the Recipient will notify the Senior Director, IFAD, in writing immediately after becoming aware of such damage or loss, in accordance with 7 CFR section 1499.9(b)(1)(i);

(2) If the amount of the damage or loss is estimated to exceed $1,000 but not to exceed $20,000, the Recipient will notify the Senior Director, IFAD, in writing within 15 days after the date that the Recipient becomes aware of such damage or loss, in accordance with 7 CFR section 1499.9(b)(1)(ii); and

(3) If the amount of the damage or loss is estimated not to exceed $1,000, the Recipient will notify CCC in the first report required to be filed under 7 CFR section 1499.13(c) that is due after the date that the Recipient becomes aware of such damage or loss, in accordance with 7 CFR section 1499.9(b)(1)(iii).

The Recipient will take all steps necessary to protect its interests and the interests of CCC with respect to any damage to or loss of the donated commodities that occurs while the Recipient has title to the donated commodities. Failure to use sale proceeds, CCC-provided funds, interest, program income, or donated commodities (including failure to exercise reasonable care with commodities) in accordance with the agreement may amount to noncompliance under 7 CFR 1499.15. If FAS/CCC finds a Recipient in noncompliance with the agreement, FAS/CCC may impose additional conditions or take one or more actions set forth in 2 CFR 200.339, including initiating a claim as a remedy.

C. In accordance with 7 CFR section 1499.9(c), the Recipient will be responsible for arranging for an independent cargo surveyor to inspect the donated commodities upon discharge from the ocean carrier and to prepare a survey or outturn report. When donated commodities are shipped on a through bill of lading, the Recipient must also obtain a delivery survey. The Recipient will provide a copy of discharge and delivery survey reports to CCC upon request. CCC will reimburse the Recipient for the reasonable costs of these services, as determined by CCC.

D. (1) Part II, Item II, Paragraph C, 7 CFR section 1499.9(c) - (h), and 7 CFR section 1499.10 will not apply with respect to any donated commodities if the Recipient notifies CCC, prior to the receipt of the

 donated commodities by the ocean carrier, that the Recipient has sold the donated commodities in accordance with this agreement on terms that require full payment based upon bill of lading quantities.

(2) Part II, Item II, Paragraph C, and 7 CFR section 1499.9(c) - (d) will not apply with respect to any donated commodities if the Recipient notifies CCC, prior to the receipt of the donated commodities by the ocean carrier, that the Recipient has purchased insurance against marine cargo loss and damage (including general average losses) for at least the value of the commodity acquisition, transportation, and related costs incurred by CCC with respect to such donated commodities, as well as such costs incurred by the Recipient and obligated to be paid by CCC under this agreement.

Item III – Payment of Other Costs

A. CCC will provide to the Recipient not more than $1,000,000.00 for 2025 for expenses authorized in this agreement to be paid with CCC-provided funds.

B. (1) The budget approved by CCC for this agreement consists of the Budget Summary, Attachment C-1, which is attached hereto and made a part of this agreement. The Budget Narrative, Attachment C-2 and the Detailed Budget, Attachment C-3, will be attached to and made a part of this agreement when the parties amend this agreement in accordance with Part I.The Recipient will expend any funds generated from a sale of the donated commodities that is otherwise permitted under this agreement (hereinafter referred to as the "sale proceeds"), CCC-provided funds, and funds provided as voluntary committed cost sharing or matching contributions, only for costs as specified in the line items in Attachment C-1. The Recipient may expend such funds only up to the amounts specified in the line items in Attachment C-1; except that, in accordance with 7 CFR section 1499.11(h), the Recipient may make adjustments between direct cost line items in Attachment C-1 without further approval, subject to the limitation in 7 CFR section 1499.11(h)(2), provided that: (a) the total amount of such adjustments does not exceed ten percent of the Grand Total Costs, excluding any voluntary committed cost sharing or matching contributions, in Attachment C-1, and (b) regardless of the total amount of adjustments, the Recipient must obtain prior approval from CCC for any adjustments that involve actions that require prior approval pursuant to 2 CFR part 200.

(2) Attachment C-1, Attachment C-2, and Attachment C-3 must be amended if the Recipient seeks to make adjustments between direct cost line items greater than ten percent of the Grand Total Costs, excluding any voluntary committed cost sharing or matching contributions, in Attachment C-1. In Attachment C-2 and Attachment C-3, as amended, the sections corresponding to the adjusted line items will show the adjusted line-item totals and any changes in amounts within the sections that contributed to the adjusted line-item totals. In addition, Attachment C-2, as amended, will include any changes in the narrative that are required to make it consistent with the adjusted line-item totals.

C. (1) Any amounts specified for indirect costs in Attachment C-1, C-2, and C-3 are based upon a provisional rate contained in a Negotiated Indirect Cost Rate Agreement (NICRA), unless the Recipient has elected to charge a *de minimis* rate of fifteen percent of modified total direct costs pursuant to 2 CFR 200.414(f). In the event that the final NICRA rate for a particular period is lower than the provisional rate, the Recipient: (a) in the case where CCC-provided funds were used to pay indirect costs, will return the difference to CCC; and (b) in the case where sale proceeds were used to pay indirect costs, will retain the difference and use it for one or more direct costs identified in Attachment C-1. In the event that the final NICRA rate for a particular period is higher than the provisional rate, CCC and the Recipient shall amend this agreement to permit the Recipient to shift an amount of CCC-provided funds or sale proceeds equal to the difference from direct costs to one or more indirect costs identified in Attachment C-1. .

(2) Unless the Recipient has elected to charge a *de minimis* rate of fifteen percent of modified total

 direct costs pursuant to 2 CFR 200.414(f), the Recipient must make all reasonable efforts to obtain its final NICRA rate from the Federal agency responsible for negotiating the rate with the Recipient (hereinafter referred to as the "cognizant Federal agency") prior to the completion of the closeout of this agreement. If the final NICRA rate is not available when the last of the financial and performance reports required by this agreement is due, the Recipient must submit the following information in writing to CCC: (a) a statement that the final NICRA rate is unavailable, (b) the name of, and a point of contact at, the cognizant Federal agency, and (c) the status of the Recipient's final NICRA rate determination, including a timeline for the submission of its proposed final NICRA rate to the cognizant Federal agency and the completion of the final annual single audit or program-specific audit required by 2 CFR part 200, subpart F.

(3) The Recipient must notify CCC immediately, in writing, if the Recipient receives the final NICRA rate prior to the completion of the closeout of this agreement. If the Recipient has already submitted its final financial report to CCC, the Recipient will have 30 days from the date of its notification to CCC of the final NICRA rate to submit a revised final financial report that is based on the final NICRA rate; provided, however, that CCC will make every effort to complete the closeout of this agreement no later than one year after the end date of the period of performance, pursuant to 2 CFR 200.344(h).

D. (1) CCC will pay all costs for which it is obligated under this agreement to the Recipient through advance payments, unless the Recipient requests the payment of a cost through reimbursement.

(2) In accordance with 7 CFR section 1499.6(f)(3), the Recipient must fully disburse funds from the preceding advance before it submits a new advance request under this agreement, with the exception that the Recipient may request to retain the balance of any funds that have not been disbursed and roll it over into a new advance request if the new advance request is made within 90 days after the preceding advance was made.

E. The Recipient will apply, and will arrange for any subrecipient to apply, the general cost principles in 2 CFR part 200, subpart E, as applicable, and the specific cost principles in 2 CFR section 200.475, to travel funded, in whole or in part, under this agreement or a subrecipient agreement.

F. Unless CCC authorizes an extension, the Recipient must liquidate all obligations incurred under this agreement and submit its final financial report no later than 120 days after the end date of the period of performance of this agreement specified in Part IV, Paragraph B. The Recipient must refund to CCC any CCC-provided funds or sale proceeds that it has not expended by the time that it submits its final financial report to CCC under this agreement.

PART III RECIPIENT'S RESPONSIBILITIES

Item I – General

A. The Recipient will distribute the donated commodities provided under this agreement within Nigeria or, if approved by CCC, sell the donated commodities within one or more of these countries: [Nigeria, Cote d'Ivoire, and Ghana], at the earliest practicable time, in accordance with the terms of this agreement. The Recipient will not sell or transship the donated commodities to any location outside of [Nigeria, Cote d'Ivoire, or Ghana], or use the donated commodities for other than domestic purposes, for as long as the Recipient has title to such donated commodities.

B. The Recipient will not sell or barter the donated commodities except as may be specified in Attachment A or otherwise specifically agreed in writing by CCC, or to dispose of damaged donated commodities in accordance with 7 CFR section 1499.9(f).

C. If CCC has approved the sale of some or all of the donated commodities, the Recipient will submit a monetization plan for CCC approval that will include the requested type, maximum quantity, packaging, and estimated arrival at U.S. port(s) of each donated commodity; a draft invitation(s) for bids; payment terms; proposed sale price(s); and other information specified by CCC. CCC will not deliver commodities to be monetized to the Recipient until CCC approves the monetization plan and proposed sale price(s) and the Recipient notifies CCC, in writing, that the Recipient has entered into a contract with a buyer for the sale of such commodities. The Recipient will immediately deposit the sale proceeds into an account of a bank in sound financial condition. The account will be insured and interest-bearing, unless CCC agrees in writing that an exception provided for in 7 CFR section 1499.11(g) applies. The Recipient will supervise such account and maintain a full accounting of all funds under this agreement.

D. As provided in 7 CFR section 1499.11(e), the Recipient will not use any sale proceeds, CCC-provided funds, interest, or program income to acquire goods or services, either directly or indirectly through another party, in a way that violates any of the U.S. Government economic sanctions programs published by the U.S. Treasury Office of Foreign Assets Control at the following website: http://www.treasury.gov/resource-center/sanctions/Pages/default.aspx.

Item II – Reports and Document Submission

A. The Recipient will, within 30 days after both parties have signed this agreement, submit to CCC for approval an organizational chart identifying the names, positions, and responsibilities of all of the Recipient's key personnel. For the purposes of this agreement, the Recipient's key personnel will be managers with general responsibilities for implementation of the agreement, such as the country director, finance director, and chief of party, as well as critical technical staff for specific activities under the agreement. Following approval by CCC of the organizational chart, the Recipient will be required to obtain written approval from CCC before hiring any new key person and notify CCC within one week after the departure of any key person. Furthermore, in accordance with 2 CFR section 200.308(f)(3), the Recipient must obtain written approval from CCC prior to the disengagement from the project for more than three months, or a 25 percent reduction in time devoted to the project, by the approved project director.

B. The Recipient will, within 30 days after the export of all or a portion of the donated commodities, submit evidence of such export to CCC, in accordance with 7 CFR section 1499.13(e).

C. The Recipient will, within 60 days after both parties have signed this agreement, submit to CCC for approval its work plan. This work plan will include a detailed description of each activity, including estimated start and completion dates for each activity and other information specified by CCC. The work plan will cover the period from the beginning until the end of the period of performance of the agreement. The Recipient will submit to CCC for approval an annual update to the work plan in each subsequent Federal government fiscal year during the period of performance of the agreement, according to a schedule specified by CCC. The annual update for each fiscal year will provide any updated information needed to ensure that the work plan is current and accurate.

D. The Recipient will, within three months after both parties have signed this agreement, submit to CCC for approval a performance monitoring plan and an evaluation plan that comply with the requirements in 7 CFR section 1499.12 and with IFAD's Monitoring and Evaluation Policy located at: https://www.fas.usda.gov/sites/default/files/2019- 06/fad_mande_policy_feb_2019.pdf. The Recipient will conduct performance monitoring and evaluations in accordance with the plans approved by CCC. Before making any changes to its approved performance monitoring plan or evaluation plan, the Recipient must submit the proposed changes to CCC and obtain CCC's approval in writing. Furthermore, within six months after both parties have signed this agreement, or a longer time period if agreed upon in writing by the Recipient and CCC, the Recipient must submit the results of any baseline

study to CCC and request that the Performance Indicators, Attachment D, be updated to incorporate such results.

E. The Recipient will submit semiannual financial reports to CCC, in accordance with 7 CFR section 1499.13(b). The reporting periods will be April 1 through September 30 and October 1 through March 31. The Recipient must submit the report for each reporting period no later than 30 days after the end of the reporting period (i.e., October 30 for the April 1 through September 30 reporting period and April 30 for the October 1 through March 31 reporting period); provided, however, that if the first semiannual financial report would cover a partial reporting period and be due less than 60 days after the effective date of the agreement, the Recipient will be exempted from submitting a report for such partial reporting period, and the Recipient's first semiannual financial report will cover the period from the effective date of the agreement through the first full reporting period and be due no later than 30 days after the end of such reporting period. The Recipient must submit the final financial report no later than 120 days after the end date of the period of performance for this agreement.

F. (1) The Recipient will submit semiannual performance reports to CCC, in accordance with 7 CFR section 1499.13(c). The reporting periods will be April 1 through September 30 and October 1 through March 31. The Recipient must submit the report for each reporting period no later than 30 days after the end of the reporting period (i.e., October 30 for the April 1 through September 30 reporting period and April 30 for the October 1 through March 31 reporting period); provided, however, that if the first semiannual performance report would cover a partial reporting period and be due less than 60 days after the effective date of the agreement, the Recipient will be exempted from submitting a report for such partial reporting period, and the Recipient's first semiannual performance report will cover the period from the effective date of the agreement through the first full reporting period and be due no later than 30 days after the end of such reporting period. The Recipient must submit the final performance report no later than 120 days after the end date of the period of performance for this agreement.

(2) In each semiannual performance report, the Recipient will report its progress toward achieving the targets in the performance indicators contained in Attachment D. Each performance indicator will contribute to the achievement of one of the results outlined in the Project-level Results Framework, Attachment E. Attachments D and E will be attached to and made a part of this agreement when the parties amend this agreement in accordance with Part I. CCC will assess the Recipient's performance under the agreement by comparing, for each performance indicator in Attachment D, the annual targets with the outcomes or outputs achieved by the Recipient, taking into account any circumstances that might have affected performance, including any circumstances beyond the control of the Recipient.

G. The Recipient will submit evaluation reports for the agreement to CCC, in accordance with 7 CFR section 1499.13(d) and IFAD's Monitoring and Evaluation Policy. The reports must be submitted in accordance with the timeline in the CCC-approved evaluation plan described in Part III, Item II, Paragraph D.

H. The Recipient will submit a post-monetization market impact assessment report to CCC, in accordance with 7 CFR section 1499.13(f). This report will assess the impact of the monetization of the donated commodities on the market of the foreign country destination and cover the period beginning 30 days prior to the date of the first sale of the donated commodities and ending on the date that is one year after the delivery of the first tranche of the donated commodities to the foreign country destination (the "assessment period"). The Recipient will arrange for the assessment to be conducted by an independent, third-party evaluator and require the evaluator to collect data from both primary and secondary sources of information and use a mixed-methods approach in the assessment that applies qualitative and quantitative techniques and triangulates information from different methods to enhance the reliability of the findings. The Recipient will arrange for the assessment to be completed within 60 days after the end of the assessment period and submit the assessment report to CCC within 30 days after the completion

of the assessment. The report will include information as specified by CCC in writing.

I. The Recipient will enter into a written contract with each provider of goods, services, or construction work valued at or above the Simplified Acquisition Threshold, in accordance with 7 CFR section 1499.11(k). The Recipient will submit a copy of each such signed contract to CCC by uploading the documents into FAIS at https://apps.fas.usda.gov/FAIS/webapp/

J. The Recipient will consult CCC prior to the selection of any subrecipient. The Recipient will enter into an agreement with each subrecipient that will set forth the responsibilities of both parties. The Recipient will submit a copy of each subrecipient agreement to CCC within 60 days after signing the subrecipient agreement and prior to the transfer of any donated commodities, sale proceeds, CCC-provided funds, or program income to the subrecipient, in accordance with 7 CFR section 1499.14(a). The Recipient will submit a copy of each subrecipient agreement by uploading the documents into FAIS at https://apps.fas.usda.gov/FAIS/webapp/. The Recipient will obtain written approval from CCC before making any changes to any information regarding a subrecipient specified in section 4(d) of Attachment A.

K. The Recipient will inform CCC, in accordance with 7 CFR section 1499.12(c), of any problems, delays, or adverse conditions that materially impair the Recipient's ability to meet the objectives of this agreement. This notification must include a statement of any corrective actions taken or contemplated by the Recipient, and any additional assistance requested from CCC to resolve the situation. The Recipient must make this notification by sending an e-mail message to the Senior Director, IFAD, PPDED@usda.gov within 30 days after the date on which the Recipient becomes aware of such a problem, delay, or adverse condition.

L. If the Recipient uses funds under this agreement to establish a Federal interest in real property, such as through construction, the Recipient will submit to CCC a Standard Form 429, Real Property Status Report. The Recipient will submit this form to CCC before it uses funds under this agreement to acquire, improve, furnish, or dispose of any real property in which there is a Federal interest and will continue to submit the form on an annual basis, beginning on a date specified by CCC, until the disposition of the property by the Recipient in accordance with 2 CFR section 200.311.

M. Except as otherwise provided in this agreement or communicated by CCC to the Recipient in writing, the Recipient will submit any reports, information, or requests required by or related to this agreement, and any other submissions required in 7 CFR part 1499, to the Senior Director, IFAD, through the Food Aid Information Service (FAIS). The Recipient will consult FAIS at https://apps.fas.usda.gov/FAIS/webapp/ for required forms and instructions. If questions arise related to this agreement, the Recipient may send a message to PPDED@usda.gov to seek assistance.

N. The information collection requirements contained in this agreement have been approved by the Office of Management and Budget (OMB) under the provisions of 44 U.S.C. Chapter 35 and assigned OMB Number 0551-0035 (expires April 30, 2027). Persons are not required to respond to a collection of information unless it displays a currently valid OMB control number.

Item III – Certification and Compliance Requirements

A. The Recipient asserts that it has taken action to ensure that any donated commodities that will be distributed to beneficiaries will be imported and distributed free from all customs, duties, tolls, and taxes. The Recipient has submitted information to CCC to support this assertion.

B. The Recipient asserts that, to the best of its knowledge, the importation and distribution of the donated commodities in Nigeria will not result in a substantial disincentive to or interference with

 domestic production or marketing inNigeria. The Recipient further asserts that the importation of the donated commodities and the use of any local currency sale proceeds for development purposes will not have a disruptive impact on the farmers or the local economy of Nigeria. The Recipient has submitted information to CCC to support these assertions.

C. The Recipient asserts that, to the best of its knowledge, any sale or barter of the donated commodities will not displace or interfere with any sales of United States commodities that would otherwise be made to or within Nigeria. The Recipient has submitted information to CCC to support this assertion.

D. The Recipient asserts that adequate transportation and storage facilities will be available in Nigeria at the time of the arrival of the donated commodities to prevent the spoilage or waste of the donated commodities. The Recipient has submitted information to CCC to support this assertion.

E. The Recipient will comply with the Terms and Conditions Regarding the Acknowledgment of USDA Funding, the Use of the USDA Logo, and Communications to the Public, Attachment F, which is attached hereto and made a part of this agreement.

F. The Recipient will comply with the audit requirements in 7 CFR section 1499.18.

G. The Recipient will disclose to CCC all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this agreement. The Recipient must make this disclosure by sending an e-mail message to the Senior Director, IFAD, at PPDED@usda.gov within 30 days after the date on which the Recipient becomes aware of such a violation.

H. During the agreement closeout process, the Recipient will submit a tax certification letter on company letterhead indicating that it has paid in full all taxes for its employees working in Nigeria to implement this agreement. The tax certification letter and the disposition form must be submitted no later than 120 after the end date of the period of performance as specified in Part IV, Paragraph B. The Recipient will also submit the equipment disposition form required by CCC. In accordance with 7 CFR section 1499.13(h) and 2 CFR section 200.334, the Recipient must retain records related to this agreement for a period of three years from the date of submission to CCC of the final financial report.

I. As a condition of this cooperative agreement, the Recipient assures and certifies that it is in compliance, and will comply during the course of this agreement, with all applicable laws, regulations, and Federal Executive Orders. The Recipient will also comply with the FAS General Terms and Conditions for Grants and Cooperative Agreements, as applicable, found in the USDA General Terms and Conditions; provided, however, that if such an award term or condition is inconsistent with a provision of this agreement or a provision of a statute or regulation applicable to this agreement, the order of precedence will be: first, the applicable statute or regulation; second, the provision of the agreement; and third, the award term or condition.

PART IV FINAL PROVISIONS

A. This agreement will enter into force upon the date of last signature. The Federal award date for this agreement, for the purposes of 2 CFR part 200.1, will be the date that it is signed by the authorized representative of CCC.

B. The period of performance and the budget period of this agreement start on the date on which the agreement enters into force and end on 09/30/2029.

C. The Recipient may object to an action taken by CCC in response to a failure of the Recipient to

comply with this agreement, as provided in 7 CFR section 1499.17, by submitting its objection in writing to the Senior Director, IFAD, within 30 days after the date of CCC's written notification to the Recipient of the action.

D. The Federal award may be terminated, in whole or part, as outlined in 2 CFR 200.340 and 7 CFR 1499.16, including:

(1) By CCC if the recipient or subrecipient fails to comply with the terms and conditions of the Federal award;

(2) By CCC with the consent of the recipient or subrecipient, in which case the two parties must agree upon the termination conditions. These conditions include the effective date and, in the case of partial termination, the portion to be terminated;

(3) By the recipient or subrecipient upon sending CCC a written notification of the reasons for such termination, the effective date, and, in the case of partial termination, the portion to be terminated. However, if CCC determines that the remaining portion of the Federal award will not accomplish the purposes for which the Federal award was made, CCC may terminate the Federal award in its entirety;

(4) By CCC pursuant to the terms and conditions of the Federal award, including, to the extent authorized by law, if an award no longer effectuates the program goals or agency priorities;

(5) By CCC if the continuation of the assistance provided under the agreement is no longer necessary or desirable; or

(6) By CCC if storage facilities are inadequate to prevent spoilage or waste of the donated commodities, or distribution of the donated commodities will result in substantial disincentive to or interference with domestic production or marketing in the target country.

In witness whereof, the representatives of the parties, duly authorized for the purpose, have signed this agreement.

FOR THE GOVERNMENT OF THE UNITED STATES OF AMERICA	FOR PARTNERS OF THE AMERICAS
By: MARK SLUPEK Digitally signed by MARK SLUPEK Date: 2025.09.23 16:51:29 -04'00'	By: John McPhail Digitally signed by John McPhail Date: 2025.09.23 09:28:06 -04'00'
Mark Slupek	John McPhail
Title: Deputy Administrator Global Programs Foreign Agricultural Service, U.S. Department of Agriculture	Title: President & CEO
Date:	Date: September 23, 2025

ATTACHMENT A
PLAN OF OPERATION
FOOD FOR PROGRESS
FY 2025

1. NAME AND ADDRESS OF RECIPIENT

Partners of the Americas
1424 K Street
Suite 700
Washington, DC 20005

Contact at U.S. Headquarters

Michael Moscarelli
Chief Operating
Officer Tel.
2026376214
Email:
mmoscarelli@partners.net

Contact in Nigeria

Charles Okereke
Senior Country
Advisor 1424 K
Street
Suite 700
Washington,
DC United
States
Tel. 202-637-6218
Email: ogbokereke2009@yahoo.com

2. COUNTRY OF DONATION

Nigeria

3. PROJECT DESCRIPTION

(a) Project Objectives

Partners of the Americas (POA) will over a period of approximately five years, use the proceeds from sale of commodities to implement a project in Nigeria focused on achieving the following objectives:

- To expand trade by strengthening food safety, advancing systems efficiency, non-trade barriers that reduce the cost of trade for food and agricultural products.
- To increase agricultural productivity through capacity development and enhanced efficiency while increasing access to finance.

(b) Project Implementation

As referenced in Part III, Item II, Paragraph C, POA will provide additional details of each activity within the submitted Work Plan. In addition to providing further activity details, POA will also define the intended beneficiaries, timing of implementation, geographic targeting, classification of intended procurements, including contracts and grants, and a breakdown of the implementation strategy, including the structure of implementation, to include roles and responsibilities of any subrecipient(s).

POA will use proceeds to implement the following activities:

Activity1: Increased Agricultural Productivity and Trade Through Livestock Production

Partners of the Americas (POA), in partnership with the United States Soybean Export Council (USSEC) and CABI, will productivity and trade in poultry and aquaculture. POA will increase agricultural imports and exports to and from Nigeria through assistance provided by USDA's Food for Progress project.

Partners for the Americas will increase the productivity of 6,000 poultry and aquaculture producers in Nigeria. POA will provide technical capacity, access to finance, and the use of ICT. POA will work with 13 integrated (contract/out-grower) companies, six feed companies, 12 producer groups, two poultry/aquaculture federations, and 10 agricultural service providers.

Partners of the Americas will utilize U.S. Soybean Export Council's (USSEC) existing innovative and high-quality training packages to build the capacity of livestock producers and professionals to increase productivity and sector growth, through training in key areas such as biosecurity, the use of new and improved technologies, and animal nutrition. For example, POA will implement a series of poultry-specific training modules (nine existing modules total) on biosecurity, animal nutrition, and flock and disease management, drawing on proven curricula tailored to the Nigerian context.

Partners of the Americas will prioritize health monitoring and rapid disease detection practices in both poultry and aquaculture. Strict isolation and quarantine measures for sick animals will be implemented to prevent the spread of disease. POA will implement comprehensive sanitation practices, including cleaning, disinfection, and proper carcass disposal. Vaccinations will be encouraged alongside biosecurity measures, considering local challenges such as unstable electricity. Additionally, rodent and pest control will be emphasized to reduce infection risks. POA will provide targeted training and extension services to improve farmer compliance with biosecurity practices. For aquaculture, biosecurity plans will focus on controlling microbial risks and preventing pathogen spread to enhance survival and productivity, making biosecurity a central component of the program.

Partners of the Americas will deliver training modules for commercial fish producers, hatchery operators, service providers, agribusiness aggregators, and relevant Ministry staff. In addition, POA

will select participants for specialized training modules on improved feed formulation, including feed mill technicians, agribusiness staff, and contract farming coordinators. To improve access to finance, POA will provide capacity-building workshops for 1) producers, 2) contract farming/out-grower agribusinesses, and 3) financial institutions that will support participants secure needed funding to invest in high-quality inputs, such as soy meal, premixes, and feed additives, as well as new and improved technologies.

Activity 2: Improve Trade Finance Capacity

Partners of the Americas will expand trade by increasing the use of trade finance tools and targeted grants. POA will develop a complementary co-investment grant mechanism to enable Nigerian buyers to purchase agricultural commodities and equipment, thereby generating sustainable demand for feed inputs including, but not limited to soy meal, feed additives, and livestock technologies.

Partners of the Americas will conduct stakeholder training on trade finance tools including how to obtain export financing and credit insurance. Partners of the Americas will conduct 15 virtual workshops with 250 producers on finance programs and tools that mitigate risks. POA will utilize programs including, but not limited to private commercial financing schemes, the Export-Import Bank of the United States (EXIM) credit insurance, U.S. International Development Finance Corporation (DFC), USDA's GSM-102 program (credit guarantees), and U.S. Small Business Administration export working capital solutions. POA will assist exporters mitigate payment risks with credit insurance and guarantees.

Partners of the Americas will implement a creative but compliant approach to achieve Activity 2 within Nigeria's foreign currency restrictions. Collaborating with USDA's Foreign Agricultural Service (FAS) in Lagos, Nigerian financial institutions, and the Central Bank of Nigeria (CBN), POA will seek solutions to help local banks meet GSM-102 eligibility requirements despite regulatory constraints, including Nigeria's 2025 Foreign Exchange Code. POA will promote risk management strategies that help exporters handle currency conversion risks and avoid fraud.

Partners of the Americas will design co-investment grants supporting Nigerian buyers in purchasing inputs using local currency or compliant mechanisms. POA will offer training to equip producers and stakeholders to navigate export financing, credit insurance, and foreign exchange risk mitigation aligned with U.S.-backed programs.

Partners of the Americas will explore digital payment platforms and virtual U.S. currency accounts to facilitate secure and efficient foreign currency transactions. POA sustained collaboration with stakeholders will ensure the USDA funded project leverages best practices and remains compliant with Nigeria's evolving regulatory framework, thus expanding trade finance capacity and stimulating demand for imported agricultural products.

Activity 3: Expand Trade by Reducing Non-Tariff Barriers

Partners of the Americas will address critical Sanitary and Phyto-sanitary (SPS) and customs issues that are a barrier for exporters to Nigeria. Through the Centre for Agriculture and Biosecurity (CABI), POA will conduct a national audit of Nigeria's SPS framework and customs procedures and provide capacity-building to 100 Nigerian officials on key solutions for complying with SPS standards and enhancing import efficiency, including the use of digital and ICT tools to improve efficiency.

Partners of the Americas will conduct a comprehensive audit of Nigeria's SPS regulations and customs system, a key step toward unlocking the Nigerian market for exports and improving trade efficiency. POA will pinpoint where Nigeria is not meeting international obligations and provide a roadmap for compliance. Through CABI, POA will work closely with USDA and stakeholders' interests, including, but not limited to, USSEC, American Grains Council, and the American Soybean Association (ASA), to ensure the audit design covers priority trade issues.
Partners of the Americas will define objectives and scope, develop a detailed audit checklist, review and

gather necessary documentation, and conduct a pre-audit assessment to identify and address any potential weaknesses. POA will conduct national audit, develop action plan to harmonize regulations with SPS standards, and identify an action plan that aims at improving Nigeria customs processes.

4. PROGRAM DESCRIPTION

(a) Method of Choosing Beneficiaries

POA will carry out activities under this agreement in targeting 10,700 direct and 48,500 indirect beneficiaries.

Method of Selection:

The selection of beneficiaries will be carried out through a targeted and strategic approach focusing on stakeholders who can significantly influence the productivity and trade of poultry and aquaculture sectors. Targeting the states with high potential production activities. Beneficiaries will be selected based on their capacity to benefit from training in biosecurity, animal nutrition, feed formulation, financial literacy, access to finance, and ICT tools, as well as their ability to drive sustainable improvements within their value chains. This method emphasizes working through established networks and associations to ensure fair access, prioritizing those with potential for increased productivity and trade expansion. This targeted selection ensures efficient resource utilization and maximizes impacts on sector growth and export potential.

Direct and Indirect Beneficiaries:

The direct beneficiaries will include 6,000 poultry and aquaculture producers. In addition to these producers, beneficiaries will come from 13 integrated contract/out-grower companies, six feed companies, 12 producer groups, two poultry and aquaculture federations, and 10 service providers. Additionally, POA aims to engage 250 farmers and producers, 15 cooperators, 25 Nigerian importers, and seven Nigerian financial institutions to enhance their capacity in utilizing key trade finance resources. The focus will be on increasing productivity by delivering training on biosecurity, animal nutrition, improved feed formulation, financial literacy, access to finance, and the use of ICT tools among poultry and aquaculture value chains in Nigeria. These direct beneficiaries will be primarily located in states with high potential for poultry and aquaculture production, such as Lagos, Ogun, Rivers, Delta, and Edo

Indirect beneficiaries will comprise broader groups who gain from the enhanced agricultural productivity and trade facilitation enabled by the project. Beneficiaries will include government agencies involved in livestock development and trade, smallholder farmers linked through contract farming and out-grower schemes, agricultural input suppliers, processors, retailers, and consumers benefiting from increased availability and consumption of affordable, high-quality animal protein. Furthermore, the wider Nigerian population will also benefit from strengthened food security and economic resilience, particularly in urban centers where demand for animal proteins is growing.

(b) Program Administration

POA will dedicate 13 in-country staff personnel and 4 headquarters staff personnel to implement this agreement.

(c) Expected Contribution

All other costs for this program not covered by resources provided by CCC will be borne by POA.

(d) Subrecipients

POA may select one or more subrecipients from among local and international organizations. To be eligible for selection as a subrecipient, an organization must have:

- Experience operating in the targeted region
- Experience working with POA
- Experience in agricultural projects; and
- Experience in handling financial matters.

POA will enter into an agreement with each subrecipient that will set forth the responsibilities of both parties. POA will consult CCC prior to the selection of any subrecipient and provide a copy to CCC of each signed agreement with a subrecipient.

1. U.S. Soybean Export Council (USSEC)
2. Centre for Agriculture and Biosecurity International (CABI)

(e) Governmental or Non-governmental Entities

POA will work directly with the following entities:

Government Institutions:
- Federal Ministry of Livestock Development
- Nigerian Institute of Animal Science
- National Agricultural Extension
- National Veterinary Research Institute
- Nigeria Export-Import Bank

Non-Government Institutions:
- Poultry Association of Nigeria
- Feed Industry of Nigeria
- Bank of Agriculture
- Development Bank of Nigeria
- First City Monument Bank

Private Sector Actors:

The project will engage and work collaboratively with Nigerian, U.S., and other international private sector actors, including business, industry, and trade associations, export councils, chambers of commerce, as well as individual enterprises that demonstrate interest and commitment to advance policy initiatives, advocate for the requirements of import/export business, participate in events and industry forums, and consider opportunities for increased investment in cold storage, food safety laboratories, new technologies, or other trade enhancing ventures. Partners of the Americas may request approval from the Director, International Food Assistance Division, FAS to work with additional governmental and non-governmental organizations as part of this agreement.

5. USE OF FUNDS OR GOODS AND SERVICES GENERATED

(a) Type of Commodities to be Sold or Bartered

Hard Red Winter Wheat, Hard Red Spring Wheat and Soybean Meal

Anticipated monetization completion date: 05/31/2026

(b) Anticipated Interest Earned: $1.00

(c)Private Sector Participation in the Sale of Commodities

If Partners of the Americas determines, based on a market survey, that a negotiated sale would ensure the most favorable price, POA may request approval within its monetization plan from the Director, International Food Assistance Division, FAS, to conduct a negotiated sale. POA will keep the local U.S. embassy and the International Food Assistance Division, FAS, informed throughout the sale process. POA will provide its sale contract(s) that the buyer will be responsible for the payment of any duties or taxes imposed on the donated commodities.

6.DESCRIPTION OF ANY REPROCESSING OR REPACKING

Partners of the Americas intend that there will be no reprocessing or repackaging of the donated commodities. If it later determines that reprocessing or repackaging of the commodities is necessary, POA will request approval from the Director, International Food Assistance Division, FAS. If POA receives written approval from the Director, International Food Assistance Division, FAS, POA may process or repackage the commodities at POA expense.

ATTACHMENT B 1
COMMODITY SPECIFICATIONS
HARD RED SPRING
(Dark Northern Spring/Northern Spring Wheat)

1. Class:	Hard Red Spring
2. Subclass:	Dark Northern Spring/Northern Spring
3. Grade:	U.S. No. 2/ob
4. Protein:	Ordinary
5. Moisture (Max.):	13.5%
6. Dockage (Max):	0.6%
7. Test weight lbs/bu (Min.):	57.0
8. Falling Number (Min.):	300
9. Wheat of Other Classes (Max.):	3.0%
10. Total Defects (Max.): 1/	3.5%

1/ Includes damaged kernels, foreign material and shrunken & broken kernel

Packaging

Bulk or 50-kilogram woven polypropylene fabric and circular-woven style bags

ATTACHMENT B 1
COMMODITY SPECIFICATIONS
SOYBEAN MEAL

The soybean meal shall meet the standard specifications of the National Oilseeds Processing Association (NOPA) trading rules of February 2006.

Chemical and Physical Requirements

	Requirement	
Item	**Minimum**	**Maximum**
Protein, %	47.0	---
Moisture,%	12.0	12.5
Fat, %	0.5	---
Fiber, %	---	3.5

Packaging

Bulk

ATTACHMENT C - 1
Budget Summary

Program: FFPr
Country of Operation: Nigeria
Implementing Organization: Partners of the Americas
Fiscal Year: 2025
Agreement Number: FCC-620-2025/009-00

Total Amount of Federal Funds Obligated

Funding Source	Funding Year	Commodity Cost (FFPr and MGD Only)	Freight Cost (FFPr and MGD Only)	Administrative Costs (cash portion)	Total Federal Funding Obligated
Commodity Credit Corporation (FFPr)	2025	$20,610,000.00	$4,750,000.00	$1,000,000.00	$26,360,000.00

Project Operating Budget

ExpenseType	Monetization Proceeds	CCC Funds (Admin Only)	Cost Share	Total w/out Cost Share	Total w/Cost Share
Administration (Flexible Line Items)					
Salaries	$108,572.10	$240,355.00	$0.00	$348,927.10	$348,927.10
Benefits	$27,673.31	$63,078.00	$0.00	$90,751.31	$90,751.31
Professional Services	$765,462.78	$368,130.22	$0.00	$1,133,593.00	$1,133,593.00
Equipment	$0.00	$60,000.00	$0.00	$60,000.00	$60,000.00
Office	$255,078.23	$53,435.00	$0.00	$308,513.23	$308,513.23
Travel	$229,616.38	$69,540.00	$0.00	$299,156.38	$299,156.38
Supplies	$5,362.84	$9,202.00	$0.00	$14,564.84	$14,564.84
Other	$77,943.81	$5,825.00	$0.00	$83,768.81	$83,768.81
Total Administration	$1,469,709.45	$869,565.22	$0.00	$2,339,274.67	$2,339,274.67
Activities (Flexible Line Items)					
Expand Trade by Reducing Non-Tariff Barriers	$3,503,009.70	$0.00	$40,000.00	$3,503,009.70	$3,543,009.70
Improve Trade Finance Capacity	$4,018,811.98	$0.00	$307,715.54	$4,018,811.98	$4,326,527.52
Increased Agricultural Productivity and Trade Through Livestock Production	$1,072,651.93	$0.00	$0.00	$1,072,651.93	$1,072,651.93
Total Activities	$8,594,473.61	$0.00	$347,715.54	$8,594,473.61	$8,942,189.15
ITSH (Non-flexible Line Items)					
Total ITSH	$0.00	$0.00	$0.00	$0.00	$0.00
Total Direct Costs	$10,064,183.06	$869,565.22	$347,715.54	$10,933,748.28	$11,281,463.82
ICR on Administration	$220,456.42	$0.00		$220,456.42	
ICR on Activities	$1,084,199.52	$0.00		$1,084,199.52	
ICR on ITSH	$0.00	$130,434.78		$130,434.78	

2	**Total Indirect Costs**	$1,304,655.94	$130,434.78		$1,435,090.72	
	Anticipated Program Income					$578,839.00
	Grand Total Costs	$11,368,839.00	$1,000,000.00	$347,715.54	$12,368,839.00	$12,716,554.54
	Total Amount of Federal Award (Total Federal Funds Obligated plus Cost Share): $26,707,715.54					